

SENATE No. 95

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the labeling of marijuana.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 95

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 95) of Patrick M. O'Connor relative to the labeling of marijuana. Cannabis Policy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 155 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the labeling of marijuana.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (a1/2) of section 4 of chapter 94G of the General Laws is hereby
2 amended by striking clause (xxvi) and inserting in place thereof the following:

3 (xxvi) requirements for the labeling of a package containing marijuana or marijuana
4 products that shall, at a minimum, include: (1) a symbol or easily recognizable mark issued by
5 the commission that indicates the package contains marijuana or a marijuana product; (2) a
6 symbol or other easily recognizable mark issued by the commission on the package indicating to
7 children that the product is harmful to children; (3) the name and contact information of the
8 marijuana cultivator or the marijuana product manufacturer who produced the marijuana or
9 marijuana product; (4) the results of sampling, testing and analysis conducted by a licensed
10 independent testing laboratory; (5) a seal certifying the marijuana meets such testing standards;

(6) a unique batch number identifying the production batch associated with manufacturing, processing, and cultivating; (7) a list of ingredients and possible allergens; (8) in bold, the amount of delta-nine-tetrahydrocannabinol (Δ^9 -THC) in the package and in each serving of a marijuana product as expressed in absolute terms and as a percentage of volume; (9) the number of servings in a package if there are multiple servings; (10) a use-by date, if applicable; and (11) the following statement, including capitalization: "This product has not been analyzed or approved by the FDA. There is limited information on the side effects of using this product, and there may be associated health risks. Marijuana use during pregnancy and breast-feeding may pose potential harms. It is against the law to drive or operate machinery when under the influence of this product. **KEEP THIS PRODUCT AWAY FROM CHILDREN.**"; and (12) comprehensive prominent rotating health warnings, based on the best available research on what constitutes effective warnings for transmitting knowledge and achieving behavior change from tobacco and cannabis warning research, including pictorial warnings if supported. These regulations shall be periodically updated based on emerging science on cannabis and on warning communication best practices. These warnings must also include the increased risk of psychosis, schizophrenia, and suicide with use of THC-containing marijuana products, especially when initiated young or used frequently.